

Travellers arriving in Australia, importers, import industry participants, airline and shipping industries and other people bringing or importing goods or conveyances into Australia need to be aware of the penalties for not complying with biosecurity requirements.

The Biosecurity Act 2015 (Biosecurity Act), as amended, provides a framework of modern tools to manage compliance. This includes an Infringement Notice Scheme (INS), enforceable undertakings, injunctions and civil penalty orders, as set out in the Regulatory Powers (Standard Provisions) Act 2014.

There are 55 provisions under s523 in the Biosecurity Act that are subject to infringement notices under Part 5 of the Regulatory Powers (Standard Provisions) Act 2014. Some can be issued at first points of entry such as airports and seaports. Some relate to cargo and ballast water. Others can be used across the biosecurity continuum.

Infringement notices

Infringement notices provide an effective method for dealing with certain breaches of the law. They are typically used for low-level or high-volume contraventions. An infringement notice provides an alternative to prosecution for an offence and to court proceedings for a civil penalty order.

Paying the amount specified in an infringement notice within the payment period specified in the notice effectively discharges all guilt or liability regarding the alleged contravention without making admissions. If you choose not to pay, then you may be prosecuted for an offence, or we may commence court proceedings for a civil penalty order against you. The court may impose a financial penalty for the contravention, as specified in the Biosecurity Act for the particular contravention.

Your infringement notice sets out information about the payment amount and method. It also explains the processes for seeking a withdrawal of a notice or an extension of the payment period.

Further information

Contact us

Please contact the Infringement Notice Unit via email: InfringementUnit@aff.gov.au.

This email inbox is checked during business hours, Monday – Friday 8.30 am - 4.30 pm AEST.

Phone: 02 6272 4965

Postal address:

Infringement Notice Scheme

Department of Agriculture, Fisheries and Forestry

GPO Box 858

Canberra ACT 2601

Source: <https://www.agriculture.gov.au/biosecurity-trade/policy/legislation/compliance/infringement-notice-scheme>